

		GM contends filing and motion fees relating to Plaintiffs' motion to compel were unnecessary because the motion practice was one-sided and the motions were never heard. Motion fees are allowable costs under § 1033.5. (Code Civ. Proc., § 1033.5(a)(1).) However, because the motion was filed after the mandatory settlement conference statement, before the notice of settlement, and was ultimately not heard, there is no showing the motion filing fee was a necessarily incurred cost for litigation. Objections against all other mandatory fees such as jury fees, service of process fees, and fees for electronic filings or service are not well founded. The court deems such costs reasonably necessary to advance litigation and effectuate the settlement. The court will allow such costs to be recovered because Defendant did not meet its burden of showing the costs were not reasonable or necessary. The court agrees that costs regarding filing and motion fees relating to the motion to compel filed 08/01/2025 were not reasonably necessary to advance litigation or effectuate the settlement. Accordingly, the court GRANTS the motion, in part, and taxes Plaintiffs' Memorandum of Costs in the amount of \$72.36 (\$328.62 - \$256.26). Plaintiffs are awarded \$714.87 (\$787.23 - \$72.36) in costs. The OSC remains on calendar for 7/20/26. GM shall give notice.
305	<i>Phol vs. Synched, LLC</i>	Scott Shibayama's (Moving Counsel) motion to be relieved as counsel for Defendant Synched, LLC c/o Ratchel Pinlac is GRANTED. On its own motion, the court sets an OSC re: status of unrepresented entity for 10/5/26 at 8:45 a.m. The court will interlineate the new hearing date for the order to show cause re: status of unrepresented

		entity into the proposed order and will sign the amended order. The court will amend the proposed order to check box 3(b), such to affirm Moving Counsel has properly served client by mail and submitted a declaration. The court will amend the proposed order to check box 5(a), such that the order will become effective upon the filing of the proof of service of the signed order. The court will amend the dates listed under 7(a), 8, and 9(b) to reflect the correct trial date of 12/07/2026. The Court will sign the amended order. Moving Counsel shall serve the signed order on Defendant and all parties that have appeared. Moving Counsel will be relieved as counsel of record for Defendant effective upon the filing of the proof of service of the signed order upon Defendant and all other parties. Moving Counsel shall give notice.
306	<i>DeLisio vs. Renewal By Andersen, LLC</i>	Before the court are defendant Renewal By Andersen, LLC's (Defendant), unopposed demurrer and motion to strike portions of plaintiffs Frederick W. Delisio and Paula Delisio's (Plaintiffs together) complaint. As set forth below, the demurrer is OVERRULED and the motion to strike is GRANTED in part and DENIED in part. <u>Demurrer</u> Defendants demur to the fourth, fifth, and sixth causes of action (COA) based on lack of sufficient facts. (Code of Civil Procedure section 430.10, subdivision (e).)